Chroniton Labs

Chroniton Labs Individual Contributor Assignment Agreement

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Thank you for contributing to a Chroniton Labs project. Chroniton Labs projects are open-source projects stewarded by AxonOps Limited, a company registered in England and Wales with company number 14105598 and registered office at 124 City Road, London, EC1V 2NX, England (**"We", "Us" or "Our"**).

This Agreement transfers the rights specified below to Us, grants rights back to You, and binds Us to the outbound licensing undertaking in Section 2.3. Please read it before signing.

The Chroniton Labs GitHub organisation is a hosting location only, not a legal entity or party to this Agreement. AxonOps Limited remains the steward, contracting party and recipient of the assignments and licences granted to Us.

You sign through the CLA Assistant signing flow linked from the project's pull-request check. By entering or confirming Your full legal name while authenticated to Your GitHub account and actively accepting this identified version, You intend Your name and acceptance to be Your electronic signature authenticating the whole Agreement, including its copyright assignment and moral-rights provisions.

You sign personally and, only where Section 3(c)(iii) applies, also as the authorised representative of the Rights Owner identified to Us. AxonOps may rely on the representations in Section 3 and is not required by this Agreement to investigate Your employment status, contractual arrangements or authority.

1. Definitions

"You" or "Your" means the individual signing this Agreement. Where You make a grant under Section 3(c)(iii), references to grants by You include grants made by You in Your disclosed representative capacity on behalf of the relevant Rights Owner.

"Rights Owner" means an employer, client or other person that owns or controls relevant rights in a Contribution and has expressly authorised You to execute this Agreement and make the grants in Section 2 on its behalf as described in Section 3(c)(iii).

"Contribution" means code, tests, documentation or other material intentionally Submitted for inclusion in, or improvement of, the Material, including modifications, additions and material produced with AI tools. A Contribution need not qualify for copyright protection. The grants in Section 2 cover only the rights specified there; submission does not make You the owner of another person's rights.

"Copyright" means economic copyright and related rights in a Contribution, including database rights, for their full duration and any extensions or renewals. It excludes patents, trade marks and moral rights, which are dealt with separately.

"Material" means the software and documentation of the open-source projects that We publish under the Chroniton Labs name, including the repositories of the Chroniton Labs GitHub organisation

at https://github.com/chronitonlabs, those repositories at any successor hosting location, and any other repositories We clearly identify as part of a Chroniton Labs project, wherever hosted. Where a Contribution is Submitted to a particular project, references to the Material to which it was Submitted mean that project.

“Submit” means intentionally communicate material to Us or Our representatives for inclusion in, or improvement of, the Material, including through pull requests, source control, issue trackers and project mailing lists. It excludes material conspicuously marked in writing as **“Not a Contribution”** and private correspondence not intended for inclusion. An agent or automated tool acting at Your direction may make the communication on Your behalf.

“Submission Date” means the date a Contribution is Submitted.

“Effective Date” means the date You sign this Agreement.

“ASF” means The Apache Software Foundation.

2. Grant of Rights

2.1 Copyright Assignment and Fallbacks

(a) Assignment. You hereby assign to Us all Your right, title and interest worldwide in Copyright that You own, and all Copyright that a Rights Owner has expressly authorised You to assign on its behalf under Section 3(c)(iii), in:

- Contributions Submitted on or after the Effective Date; and
- Your existing Contributions to the Material not already governed by an earlier signed contributor agreement with Us, including any pull request open when You sign.

Where You act for a Rights Owner, You make this assignment in Your disclosed representative capacity on behalf of that Rights Owner as well as making the grants that apply to Your own rights.

Assignment of existing rights takes effect on the Effective Date, not retrospectively. So far as permitted by law, this is also a present assignment of future Copyright, taking effect when the relevant rights exist and the Contribution has been Submitted. Rights that You or the represented Rights Owner later acquire in such a Contribution are included when acquired. You are not required to create or Submit future work. Copyright already owned by Us is not transferred again.

(b) Licence fallback. To the extent Copyright covered by Section 2.1(a) cannot validly be assigned, You grant Us, personally or on the Rights Owner's behalf as applicable, the broadest licence permitted by law: worldwide, exclusive except for the retained freedom under Section 2.1(d), royalty-free, transferable in accordance with Section 6.3 and sublicensable through multiple tiers, for the full duration of those rights and any extensions or renewals.

The licence includes rights to use, reproduce, adapt, modify, translate, arrange, combine, publish, distribute, make available, communicate to the public, display, perform and otherwise exploit the Contribution in source and object form, in all media and by all legally permissible methods of use.

You consent, personally or on the Rights Owner's behalf as applicable and to the extent permitted by law, to the transfers and sublicences contemplated by this Agreement, including grants to the ASF. If exclusivity is not valid, the licence is non-exclusive to the extent necessary to make it valid. Unknown methods of use are included only to the extent applicable law and the execution formalities permit.

(c) Further fallback. To the extent relevant economic rights covered by Section 2.1(a) can neither validly be assigned nor licensed, You consent, personally or on the Rights Owner's behalf as applicable, to the acts described in Section 2.1(b), and waive and agree not to assert those rights against Us, Our successors and direct or indirect licensees, only so far as that consent, waiver or agreement is lawful. This provision does not override mandatory author protections or supply rights for which You lack authority.

(d) Licence back and retained freedom. Immediately upon Our acquiring rights under this Section, We grant the person from whom We acquired those rights—You or the represented Rights Owner, as applicable—a worldwide, non-exclusive, royalty-free, transferable and sublicensable licence for their full duration and any extensions or renewals, irrevocable to the extent permitted by law, to do all acts listed in Section 2.1(b), for any purpose and under any terms that person chooses.

For rights licensed rather than assigned, that person retains equivalent freedom to use and license them notwithstanding the exclusivity in Section 2.1(b).

The licence back and retained freedom cover only the Contribution and rights received from that person. They do not grant rights in other parts of the Material, third-party rights, or rights already owned by Us or another person. They do not override separate employment or services obligations.

(e) Independent undertaking. The grants in Sections 2.1 and 2.2 are not subject to automatic termination or reversion for breach of Section 2.3. Section 2.3 is an independently enforceable contractual undertaking. Subject to mandatory law, its breach does not automatically divest title or terminate rights already granted. Remedies against Us, including damages and applications for injunctive or other equitable relief where available, remain available.

(f) Confirmatory documents. On Our reasonable request and at Our expense, You will execute documents reasonably necessary to confirm rights already granted by You under this Agreement. Where You made a grant for a Rights Owner, You will use reasonable efforts to procure any confirmation reasonably required from that Rights Owner. Such documents may not enlarge the obligations or rights granted. This is a confirmatory obligation, not a requirement for further permission before We upstream a Contribution.

2.2 Patent Licence

You grant Us, personally and on behalf of any Rights Owner for which You are authorised to make this grant, a worldwide, non-exclusive, royalty-free, transferable and sublicensable licence, through multiple tiers, for the full duration of the relevant patents, irrevocable to the extent permitted by law, under patent claims that You or that Rights Owner own or are entitled to license, now or later, and that are necessarily infringed by:

- the Contribution alone;
- its combination with the Material to which it was Submitted; or
- its combination with the ASF project to which We submit it under Section 2.3(b).

The licence permits making, having made, using, offering for sale, selling, importing and otherwise transferring the Contribution and those combinations, in whole or part. It permits Us to grant patent sublicences to the ASF and recipients of its software as contemplated by Section 2.3(b), as well as under the Apache License, Version 2.0.

This Section applies only so far as the claims are licensable by the person making the grant. It does not require anyone to own patents, acquire rights from another person, conduct a patent search or license claims merely infringed by unrelated later modifications. No patent ownership is assigned.

2.3 Outbound Licensing Undertaking

(a) Apache-2.0 undertaking. In consideration of the grants and undertakings made under this Agreement, We undertake to You that We will license and sublicense Contributions covered by this undertaking only under the Apache License, Version 2.0, except for the licence back and retained freedom in Section 2.1(d), the ASF exception in Section 2.3(b), and transfers complying with Section 6.3.

No later version of the Apache License is automatically authorised.

Whenever We distribute a covered Contribution, We will make it available to the recipient under the Apache License, Version 2.0, and will not purport to withdraw or restrict those rights by separate terms.

We may charge for distributions and services. This undertaking does not require Us to publish a Contribution, provide source code where that licence does not require it, or accept any particular Contribution.

(b) ASF exception. We may grant to the ASF, and directly to recipients of software distributed by the ASF where its applicable instruments require, the copyright and patent licences and sublicences needed to contribute the Contribution for inclusion in an ASF project.

This includes grants under an ASF Software Grant Agreement or Corporate Contributor License Agreement and grants associated with submissions made by individuals under their own ASF Individual Contributor License Agreements. We may authorise the ASF's use, modification, distribution and sublicensing under those instruments, within the rights received under this Agreement, without obtaining further permission.

This exception authorises grants only for that ASF purpose. It does not permit Us to dual-license the Contribution generally on proprietary or other non-Apache terms, grant an independent non-Apache licence to an unrelated intermediary, or assign ownership outside Section 6.3.

The ASF's exercise of rights validly granted under its instruments is not controlled by Our undertaking in Section 2.3(a). This exception does not authorise Us to sign another person's contributor agreement in that person's name.

(c) Scope. This undertaking applies to Our exercise of rights received under this Agreement and, as between You and Us, to original material You create and Submit whose Copyright is already owned by Us.

It does not convert third-party material into Our property, alter its existing licence, or restrict an independent recipient's exercise of rights under the Apache License, Version 2.0. We cannot avoid this undertaking merely by relying on an Apache licence to the same Contribution received from You.

(d) Enforcement. You may enforce this undertaking directly against Us. Section 5 does not restrict remedies for breach of this Section, Section 2.1(d) or Section 6.3. Protection on a transfer of rights is set out in Section 6.3. A change in Our shareholders does not change Our identity or release Us from this Agreement.

2.4 Moral Rights

To the extent You personally hold moral rights in a Contribution, You waive them in writing by signing this Agreement, to the fullest extent permitted by law, in favour of Us, Our successors and direct and indirect licensees, including the ASF and recipients of its software.

Where waiver is ineffective but consent or an agreement not to assert is permitted, You consent to publication, omission of individual credit, editing, translation, adaptation, combination and distribution of the Contribution and agree not to assert those rights in relation to those acts.

Nothing waives a right that applicable law does not permit You to waive or permits false attribution to You. This Section covers existing and future Contributions within this Agreement and does not remove third-party attribution obligations. A grant made for a Rights Owner does not purport to waive an author's personal moral rights unless the author separately makes that waiver or the Rights Owner is legally entitled to do so.

2.5 Project Discretion

We may accept, reject, modify or stop using any Contribution. This Agreement does not require You to provide maintenance or support. A separate employment, services or support agreement may impose additional duties.

2.6 Reserved Rights and Trade Marks

Rights not expressly assigned or licensed are reserved to their owner.

Neither party grants rights to its trade marks, trade names or logos, except use reasonably necessary to describe origin and comply with attribution requirements.

Chroniton Labs and the names of its projects are trade marks of AxonOps Limited. This statement does not represent that registration has been granted. No endorsement is implied by a Contribution or this Agreement.

3. Your Representations

You represent that:

(a) Capacity. You are at least eighteen years old and have legal capacity to enter into this Agreement. Where You make a grant for a Rights Owner, You have authority to sign and make that grant on its behalf.

(b) Rights and AI-assisted work. For rights You purport to assign or license, You own those rights or have legally sufficient authority from their owner to make the particular assignment or licence. You disclose limitations on that authority. You do not represent that every part of a Contribution is copyrightable or that You own patents.

AI-assisted and AI-generated Contributions are welcome. Where You use an AI tool or coding agent, You have reviewed the submitted material to the extent reasonably appropriate for its nature and take responsibility for submitting it under this Agreement on the same basis as other work.

You have checked the applicable tool or account terms sufficiently to have a reasonable basis for believing they permit the submission and the rights contemplated here, and You disclose restrictions known to You.

You grant whatever relevant rights You actually hold or are authorised to grant, including any rights arising under section 9(3) of the Copyright, Designs and Patents Act 1988 or equivalent law. You do not represent that such rights exist or that using a tool, reviewing output or submitting it automatically makes You its author or owner. You do not represent that output contains no unknown third-party material. You must not knowingly Submit infringing material.

(c) Employment and other rights owners. The grants in Section 2 do not breach Your obligations to an employer, client or another person. If an employer, client or another person owns or controls relevant rights in a Contribution, You represent that, before You Submit that Contribution, at least one of the following is true:

(i) that person has waived or released those rights for the Contribution, or has transferred them to You so that You may make the grants in this Agreement;

(ii) that person has signed an Entity Contributor Assignment Agreement or another written agreement with Us that covers the Contribution; or

(iii) that person has expressly authorised You to execute this Agreement and make the grants in Section 2 on its behalf, You have identified that person to Us in writing, and You make those grants as its authorised representative as well as in Your personal capacity.

Where paragraph (iii) applies, You represent that Your authority is legally sufficient and remains effective when the affected Contribution is Submitted. Permission merely to participate in the project or submit code is not, without more, a representation that You have authority to assign another person's rights.

We may rely on these representations and are not required to investigate Your employment, contractual arrangements, ownership or authority. Rights already owned by Us remain Ours; this Agreement separately covers Your personal rights and representations.

(d) Third-party material. You identify material not owned by You or a Rights Owner for whom You make a grant, including code imported from other open-source projects, separately from Your own changes.

At submission, You provide its source, relevant version or commit where reasonably available, licence and known restrictions; retain required notices; identify modifications where required; and provide or identify required LICENSE and NOTICE information.

You have a reasonable basis for believing its inclusion and intended redistribution are permitted.

Section 2 does not assign or grant that third party's rights. Those rights remain governed by the applicable third-party licence or separate permission. This exclusion does not exclude assignment of Your separable original modifications.

For AI output, this paragraph covers third-party material You know of or identify through reasonable review, not unidentified training material merely because AI was used.

(e) Subsequent information. You will promptly tell Us of facts or circumstances of which You become aware that would make these representations materially inaccurate. You are not required to monitor indefinitely or investigate unknown claims.

4. Disclaimer

Except for the express obligations and representations in this Agreement, Contributions and licences are provided **“as is”**, without warranties or conditions of quality, fitness for a particular purpose or non-infringement, to the extent permitted by law.

This Section does not disclaim the express grants, Our licensing undertaking or either party's express obligations. It does not exclude rights or liabilities that cannot lawfully be excluded.

5. Excluded Losses

Subject to the remainder of this Section, neither party is liable to the other under this Agreement for indirect or consequential loss, or loss of profits, anticipated savings or data, whether arising in contract, tort or otherwise.

This exclusion does not apply to:

- Breach of Sections 2.1(d), 2.3 or 6.3.
- Fraud or fraudulent misrepresentation.
- Deliberate infringement or knowing misappropriation of another person's rights.
- Death or personal injury caused by negligence.
- Liability that cannot lawfully be excluded.

It does not prevent an application for injunctive or other equitable relief. All exclusions apply only to the extent lawful and, where required, reasonable.

This Agreement imposes no indemnity and no general duty to support a Contribution.

6. Miscellaneous

6.1 Governing Law and Courts

This Agreement and non-contractual obligations arising from it are governed by the law of England and Wales. Its courts have non-exclusive jurisdiction.

This choice does not displace mandatory rules that apply despite that choice, including applicable mandatory author or consumer protections.

6.2 Entire Agreement and Existing Rights

This Agreement is the entire agreement about the grants and undertakings it expressly addresses.

It does not override employment, contractor, confidentiality or other services agreements, change ownership already established under them, or revoke licences already granted. You make the representations in Section 3 taking those arrangements into account. Nothing in this Agreement requires Us to investigate them.

Nothing in this Agreement excludes liability for fraud or fraudulent misrepresentation.

6.3 Transfers and Successors

We will not transfer ownership of Copyright received under this Agreement, or Our interest in an exclusive fallback licence, unless the transferee agrees in writing to observe Sections 2.1(d), 2.3 and this Section for the transferred rights and to require the same of any onward transferee.

The written assumption must identify the transferred Contributions or portfolio and the protected contributors by name or as an identifiable class, and must be directly enforceable by those contributors. We will preserve it and provide a copy on reasonable request, subject to redaction of unrelated confidential information.

We remain liable for Our obligations and any breach unless You expressly release Us in writing. A transfer is not, by itself, a novation or release. Failure to obtain the written assumption is a breach of this Agreement, not an automatic reversal or invalidation of title. Nothing here represents that a contractual restriction binds every insolvency officeholder or purchaser by operation of property law.

Ordinary non-exclusive licences granted in compliance with Section 2.3, including ASF grants and a licence back, do not require a written assumption.

This Section does not restrict a beneficiary's use or transfer of its licence back. You may assign the benefit of this Agreement with Your relevant rights, subject to non-transferable personal rights. Neither party may transfer its contractual obligations so as to release itself without the other party's written consent.

6.4 No Waiver

Failure or delay in enforcing a provision is not a waiver. A waiver applies only to the particular occasion for which it is given.

6.5 Severability and Mandatory Law

An invalid provision is ineffective only to the extent of its invalidity; the remainder continues so far as lawful.

Nothing in this Agreement purports to waive non-waivable statutory termination, remuneration, revocation, attribution or other author protections. **“Irrevocable”** and similar language is subject to those mandatory rules.

6.6 Versions and Earlier Contributions

We may publish new versions.

A new version does not bind You merely because We publish it or change a gist. It applies to Contributions Submitted after You separately sign that version.

Earlier Contributions remain governed by the version applicable to them unless a separate signed agreement expressly identifies and changes their treatment.

For existing Contributions not governed by an earlier signed contributor agreement with Us, Section 2.1(a) takes effect when You sign and does not backdate the transfer.

You may stop making future Contributions without revoking rights already validly granted.

6.7 Records and Privacy

Signing records identify You and the version You accepted. We may retain copies to administer this Agreement and document the rights in Contributions.

Our privacy notice at https://axonops.com/privacy/ explains how We handle personal information in those records.

6.8 Formation and Signatures

We offer this Agreement through a signing process authorised by Us. Your signature accepts that offer; no countersignature by Us is required.

Our licence back and enforceable undertakings are given in exchange for the grants and undertakings made under this Agreement.

An electronic signature may be used with the intention of authenticating the identified complete version. This Agreement is a simple contract, not a deed.

6.9 Third-Party Enforcement

Except for a person expressly given direct enforcement rights under a written assumption made under Section 6.3, no person other than a party or its permitted successor or assignee may enforce this Agreement under the Contracts (Rights of Third Parties) Act 1999.

This does not restrict rights independently granted under an applicable open-source licence. You enforce Our promises as a contracting party.

This Agreement is adapted from the **Harmony Individual Contributor Assignment Agreement, version 1.0**, by Project Harmony, licensed under the Creative Commons Attribution 3.0 Unported License. The original template has been modified for Chroniton Labs, England and Wales law, the rights and outbound licensing model, electronic signing, employment, AI-assisted work and related provisions. No endorsement by Project Harmony is implied.